RESOLUTION NO. 26-50

OF THE
BEAR VALLEY COMMUNITY SERVICES DISTRICT
BOARD OF DIRECTORS

CALLING AND ORDERING AN ELECTION
RE: AN ORDINANCE OF THE BOARD OF DIRECTORS OF THE BEAR VALLEY COMMUNITY SERVICES DISTRICT REPEAL OF WATER RATE INCREASES ENACTED BY RESOLUTION NO. 26-29 OF THE BEAR VALLEY COMMUNITY SERVICES DISTRICT BOARD OF DIRECTORS ON MARCH 26, 2026, ON NOVEMBER 03, 2026, TO BE CONSOLIDATED WITH THE STATEWIDE ELECTION ON THE SAME DAY

WHEREAS, Elections Code section 9300 et seq. provides a process by which the registered voters of a district may submit to the governing board of the district an initiative for adoption after filing a copy of the same with the district elections official with a sufficient number of verified signatures of registered voters of the district, as verified by the elections official; and

WHEREAS, Elections Code section 9310 provides if such an initiative is submitted to the governing board of the district and is signed by 10% or more of the registered voters of the district, the district board shall either adopt the initiative without alteration or else submit the initiative without alteration to the voters pursuant to Elections Code section 1405; and

WHEREAS, Elections Code section 1405 provides that an election for a district initiative that meets the requirements of Section 9310 shall be held at the next general election occurring not less than 88 days after the date of the order of election; and

WHEREAS, Elections Code section 10403 provides such a vote on a district initiative may be consolidated with a statewide election and appear upon the same ballot as that provided for the statewide election and provides the form and method for the district board to place the initiative on the ballot; and

WHEREAS, the Bear Valley Community Services District ("District") Board of Directors ("Board") has received an initiative signed by at least 10% of the registered voters of the District, as verified by the County of Kern Registrar of Voters, and self-titled "AN ORDINANCE OF THE BOARD OF DIRECTORS OF THE BEAR VALLEY COMMUNITY SERVICES DISTRICT REPEAL OF WATER RATE INCREASES ENACTED BY RESOLUTION NO. 26-29 OF THE BEAR VALLEY COMMUNITY SERVICES DISTRICT BOARD OF DIRECTORS ON MARCH 26, 2026"; and

WHEREAS, the Board wishes to submit the initiative to the voters at the next general election, to consolidate the vote on the initiative with the statewide election, and to have it appear on the same ballot as that provided for the statewide election; and

WHEREAS, the County of Kern Registrar of Voters and Elections staff has confirmed that the next general election date is November 03, 2026, and this is a proper date for the District to place the initiative before the voters.

WHEREAS, on July 9, 2026, the Board approved the submission of the proposed Ordinance without alterations to the voters pursuant to section 1405 of the California Elections Code.

WHEREAS, on August 7, 2026, District staff submitted the minutes confirming the Board's approval to submit the proposed Ordinance without alterations to the voters pursuant to section 1405 of the California Elections Code.

WHEREAS, on August 10, 2026, the District was informed that a formal resolution was necessary to order the election.

WHEREAS, Cal. Elec. Code § 9605 provides that an order of election shall be amended or withdrawn upon the filing of a resolution by the legislative body stating the specifics concerning the amendment or withdrawal. The resolution shall be filed with the election official not later than the 83rd day prior to the election.

WHEREAS, the 83rd day prior to the election is August 12, 2026.

NOW, THEREFORE, BE IT RESOLVED, by the Board of Directors of the Bear Valley Community Services District, as follows:

BE IT RESOLVED, that the Board amends its prior request and orders and calls an election on Tuesday, November 03, 2026, for the purpose of submitting to the voters the following question:

> "Shall the Bear Valley Community Services District adopt an ordinance of the Board of Directors of the Bear Valley Community Services District Repeal of Water Rate Increases Enacted By Resolution No. 26-29 Of The Bear Valley Community Services District Board Of Directors On March 26, 2026?"

BE IT FURTHER RESOLVED, that the Board requests that the vote on this initiative be consolidated with the statewide election to occur on Tuesday, November 03, 2026, as well as consolidated with any other elections occurring on that day and properly consolidated with the statewide election pursuant to the California Elections Code.

BE IT FURTHER RESOLVED, that the Board acknowledges that the consolidated election will be held and conducted in the manner prescribed in Elections Code section 10418 and directs that all proceedings related to, connected with, and incidental to the election shall be regulated and performed in accordance with the provisions of law

regulating the statewide election.

BE IT FURTHER RESOLVED, that the Board directs District staff to file a copy of this resolution with the Kern County Board of Supervisors and a copy with the Kern County elections official.

BE IT FURTHER RESOLVED, that the Board directs the Kern County elections officials to administer and take all necessary actions and make all necessary reports and notices related to said election, and further directs District Staff to administer and take all necessary actions and make all necessary reports and notices related to said election and in collaboration with the Kern County elections official.

BE IT FURTHER RESOLVED, that if any part of this Resolution is held invalid the remainder of the resolution shall not be affected.

PASSED AND ADOPTED this 12th day of August 2026, by the following vote:

AYES:	**Lewis, Frevert, Hernandez, Paparella**
NOES:	**None**
ABSTAIN:	**None**
ABSENT:	**Tabor**

BY: **ATTEST:**

Paul Paparella, Board *President*
Board of Directors

Denise Jelleschitz, *Secretary to Board*